

1.

CASE #	CASE NAME	HEARING NAME
CVRI2404703	ORTIZ VS R-RIVAS TRUCKING INC.	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

The hearing on the defendants' motion to strike a portion of the complaint is continued to 7-29-26 at 8:30 A.M. in this department. No later than 7-10-26, the parties shall meet and confer in the manner required by section 435.5. No later than 7-20-26, the defendants shall do one of the following: (1) vacate the hearing on the motion to strike and file an answer to the Complaint; (2) file with the court a stipulation indicating that the parties have agreed that Plaintiff will file an amended complaint before the date set forth above; or (3) file with the court a declaration stating the means by which the parties met and conferred and identifying the specific objections in the motion to strike that the parties were unable to resolve.

Analysis:

Before filing a motion to strike, the moving party must meet and confer in person, by telephone, or by videoconference with the party who filed the pleading that is the subject of the motion. (CCP sec 435.5, subd. (a).) Rather than comply, the defendant merely sent an email to plaintiff's counsel. Unless followed up with a real-time conversation with opposing counsel, merely sending a letter is not a good-faith effort to resolve disputes regarding the sufficiency of a pleading.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2501622	MITSUBISHI HC CAPITAL AMERICA INC, VS PNG AUTO TRANSPORT, INC.	MOTION TO SET ASIDE DEFAULT

Tentative Ruling:

The motion for relief from default is granted. Medina shall file and serve her answer no later than 7-8-26.

Analysis:

The reasons expressed by the defendant for her delay in responding to the complaint, while not the most prudent, are nevertheless rational. Moreover, there is no prejudice to the plaintiff, since the co-defendant has answered, and thus the merits of the claim would need to be litigated even if this motion were to be denied.